

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                   |                                     |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Arthur Albano                   | Team:<br>Team # 3                                                 | CCRB Case #:<br>201401016           | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                   |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 01/28/2014 6:30 PM  | Location of Incident:<br>Inside of the 79th Precinct stationhouse | 18 Mo. SOL<br>7/28/2015             | Precinct:<br>79                                       |                                    |                                 |
| Date/Time CV Reported<br>Sat, 02/01/2014 6:30 PM | CV Reported At:<br>CCRB                                           | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sat, 02/01/2014 6:30 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Terrence Howard | 10504  | 950599 | 079 PCT |
| 2. SGT David Leonardi  | 04982  | 930557 | 079 PCT |
| 3. POM Michael Iovine  | 11215  | 945212 | 079 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. POM Eduardo Cornejo | 13722     | 936390 | 079 PCT  |

| Officer(s)              | Allegation                                                           | Investigator Recommendation |
|-------------------------|----------------------------------------------------------------------|-----------------------------|
| A . SGT David Leonardi  | Abuse: Sgt. David Leonardi authorized the strip search of § 87(2)(b) | A . Substantiated           |
| B . POM Terrence Howard | Abuse: PO Terrence Howard strip-searched § 87(2)(b)                  | B . Substantiated           |
| C . POM Michael Iovine  | Abuse: PO Michael Iovine strip-searched § 87(2)(b)                   | C . Substantiated           |
| § 87(4-b) § 87(2)(g)    |                                                                      |                             |
|                         |                                                                      |                             |
|                         |                                                                      |                             |
|                         |                                                                      |                             |

### Case Summary

On February 1, 2014, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board via its online website.

On January 28, 2014, at approximately 6:30 p.m. at the corner of Nostrand Avenue and Pacific Street, in Brooklyn, § 87(2)(b) was arrested by PO Terrence Howard and PO Eduardo Cornejo for § 87(2)(b). § 87(2)(b) was then transported to the 79<sup>th</sup> Precinct stationhouse where the following allegations occurred:

- **Allegation A- Abuse of Authority- Sgt. David Leonardi authorized the strip-search of § 87(2)(b)**
- **Allegation B- Abuse of Authority- PO Terrence Howard strip-searched § 87(2)(b)**
- **Allegation C- Abuse of Authority- PO Michael Iovine strip-searched § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as *substantiated*.

- § 87(4-b) § 87(2)(g)

Since § 87(2)(b) was arrested and strip-searched as a result of this incident, he was not offered mediation as an alternative resolution for this complaint.

§ 87(2)(g)

### Results of Investigation

#### Civilian Statement

##### **Complainant:** § 87(2)(b)

- § 87(2)(b) § 87(2)(b) on the date of the incident, he is a § 87(2)(b) black man with black hair and brown eyes. § 87(2)(b)

### CCRB Statement

On 2014, § 87(2)(b) appeared at the CCRB and provided the following statement (encl. 5B-E). On February 12, 2014, § 87(2)(b) provided a statement over the phone (encl. 5A). On November 28, 2014, § 87(2)(b) was contacted via phone for follow-up questioning. § 87(2)(g)

On January 28, 2014, at approximately 5:46 p.m., § 87(2)(b) purchased cigarettes and exited a store at the corner of Nostrand Avenue and Herkimer Street in Brooklyn and then walked towards Atlantic Avenue. Two plainclothes officers in a black unmarked car called out to him and stopped § 87(2)(b) near the corner of Nostrand Avenue and Pacific Street in Brooklyn. An officer, determined by investigation to be PO Terrence Howard of the 79<sup>th</sup> Precinct, approached § 87(2)(b) and told him a woman on the A train had just been robbed by a man, 6'2" tall wearing an orange jacket. § 87(2)(b) was wearing an orange work jacket at the time of the incident. § 87(2)(b) argued that he had taken the 4 train and shuttle from work to Jackson-Hewitt to prepare his taxes and then he went to HR Block before he entered the corner store.

PO Howard told § 87(2)(b) to throw away the cigarette he had been smoking and that he would buy him a new pack. § 87(2)(b) threw away his cigarette and PO Howard asked § 87(2)(b) to raise his arms, with which § 87(2)(b) complied. PO Howard frisked his outer garments and mentioned to § 87(2)(b) that he had been wearing a lot of clothing. § 87(2)(b) explained that he worked outside and needed the extra layers. PO Howard unzipped § 87(2)(b)'s outer jacket and two fleece undercoats that he had been wearing and searched inside of his coats and inside of the ankle part of his shoes, but did not find any marijuana at that time. An officer, determined by investigation to be PO Michael Iovine of the 79<sup>th</sup> Precinct, stood aside and watched. PO Howard said that he was taking § 87(2)(b) to the stationhouse to complete the search because it was too cold and § 87(2)(b) had been fidgety, which caused PO Howard to fear for his life. § 87(2)(b) asked PO Howard how he would act if he had been accused of robbery on his way home from work and PO Howard said he would likely act the same way and then placed § 87(2)(b) in his patrol car.

§ 87(2)(b) was taken to the 79<sup>th</sup> Precinct stationhouse and PO Iovine asked him whether he had anything on him. At the front desk, § 87(2)(b) removed a small bag of marijuana from inside of his sock on his left foot. § 87(2)(b) did not observe PO Howard or PO Iovine speak to any supervisor that authorized the strip search of § 87(2)(b).

After that, PO Howard and PO Iovine took § 87(2)(b) inside of a holding cell, where he was alone, and told him to remove his jackets, shirts, pants, sneakers and socks and § 87(2)(b) complied leaving him in only his underwear. Once the search yielded negative results, § 87(2)(b) was told to put his clothing back on and then a different officer, determined by investigation to be PO Eduardo Cornejo of the 79<sup>th</sup> Precinct, took his photograph and fingerprints. § 87(2)(b) was held in the holding cell for approximately 9 hours before he was released. At approximately 2:30 a.m., PO Howard returned and said something to the effect of, "Oh, you're still here," and told § 87(2)(b) that he was not identified as the suspect. § 87(2)(b) was told that his fingerprints were sent to Albany to determine whether he had any active warrants and when it returned that he did not, he was released with a desk appearance ticket for § 87(2)(b) prepared and issued by PO Cornejo. On November 28, 2014, § 87(2)(b) was contacted by the CCRB and he stated that this was the first time he has ever been strip searched by the police.

## **NYPD Statements:**

### **Subject Officer: PO TERRENCE HOWARD**

- PO Terrence Howard, § 87(2)(b) on the date of the incident, is a black man, § 87(2)(b), with black hair and brown eyes.
- On January 17, 2014, PO Howard worked from 2 p.m. until 10:35 p.m. in plainclothes assigned to a strategic enterprise team (S.E.T. team) with PO Michael Iovine in an unmarked black sedan.

### **Memo Book:**

PO Howard's memo book entries indicate that at 5:30 p.m., he watched target, § 87(2)(b), during a S.E.T. operation. At 5:46 p.m., he observed a hand to hand transaction between § 87(2)(b) and § 87(2)(b) and § 87(2)(b) purchased and placed marijuana in his left sock. § 87(2)(b) was arrested on the corner of Herkimer Street and Nostrand Avenue (encl. 6A-D).

### **CCRB Statement:**

On May 12, 2014 PO Howard appeared at the CCRB and provided the following statement (encl. 6E-F). PO Howard was reinterviewed for this case on September 20, 2014. § 87(2)(g)

On January 28, 2014, at 5:30 p.m., PO Howard and PO Iovine were seated in their unmarked patrol car approximately one block away from § 87(2)(b) § 87(2)(e), § 87(2)(f)

At approximately 5:46 p.m., PO Howard observed § 87(2)(b) enter the store and purchase marijuana from § 87(2)(b), and placing the marijuana inside of his left sock. After approximately one minute, § 87(2)(b) exited the store and walked towards Herkimer Street. PO Howard did not see § 87(2)(b) purchase cigarettes inside of the store. PO Howard and PO Iovine stopped § 87(2)(b) without additional police assistance. PO Howard did not tell § 87(2)(b) that a robbery had occurred at a nearby train station. PO Howard did not inform § 87(2)(b) why he was under arrest because he did not want § 87(2)(b) to find out that his S.E.T. team was monitoring him. PO Howard stated that at the point in which § 87(2)(b) was arrested, PO Howard was aware that § 87(2)(b) pending a search for outstanding warrants, would be released with a desk appearance ticket, due to the small quantity of marijuana that was found on § 87(2)(b)

PO Howard placed § 87(2)(b) in handcuffs and frisked his waistband and then removed the marijuana from his socks. There was no indication that § 87(2)(b) was armed with a weapon; however, he was frisked incident to a lawful arrest. The marijuana was removed from § 87(2)(b)'s left sock because the officers had observed where it was placed after § 87(2)(b) purchased it.

§ 87(2)(e), § 87(2)(f)

PO Howard and PO Iovine transported § 87(2)(b) to the 79<sup>th</sup> Precinct stationhouse.

After reviewing the Command Log and Roll Call, PO Howard recalled the Sgt. David Leonardi was present at the desk. During his initial interview with Mr. Howard, he stated that Sgt. Leonardi did not authorize a strip search for § 87(2)(b) and PO Howard did not conduct a strip search of § 87(2)(b). PO Howard placed § 87(2)(b) inside of a holding cell alone with PO Iovine. PO Howard did not see any officers strip search § 87(2)(b).

During his reinterview, PO Howard was presented with § 87(2)(b)'s arrest report which indicated that a strip search was conducted. PO Howard still did not have an independent recollection of the strip search, however, he stated that if the arrest report says a strip search was conducted, it is likely that § 87(2)(b) was strip searched. PO Howard stated Sgt. Leonardi would have authorized the strip search, because Sgt. Leonardi was his direct supervisor. However, PO Howard acknowledged that he would relay independent observations of § 87(2)(b) to Sgt. Leonardi, which could lead to a strip search. When asked if there were any specific observations that led PO Howard to believe § 87(2)(b) was concealing contraband, he stated that § 87(2)(b) smelled heavily of marijuana during his arrest, and could not independently recall any additional factors.

**Subject Officer: PO MICHAEL IOVINE**

- *PO Michael Iovine, § 87(2)(b) on the date of the incident, is a white man, § 87(2)(b) with brown hair and hazel eyes.*
- *On January 28, 2014, PO Iovine worked in plainclothes from 2 p.m. until 11 p.m. assigned to a S.E.T. team with PO Howard and PO Miller in an unmarked car.*

**Memo Book:**

PO Iovine's memo book entries indicate that at 6:50 p.m., PO Howard arrested § 87(2)(b) near Nostrand Avenue and Pacific Street (encl. 7A-C).

**CCRB Statement:**

On June 18, 2014, PO Iovine was interviewed at the CCRB. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On January 28, 2014 at approximately 6:50 p.m., § 87(2)(e) PO Howard watched a drug transaction take place between § 87(2)(b) and another individual inside of § 87(2)(b). PO Iovine did not see the drug transaction take place, but was informed of such by PO Howard.

PO Howard apprehended § 87(2)(b) on Nostrand Avenue and Pacific Street in Brooklyn. PO Iovine was present, but did not assist the arrest. PO Iovine did not recall which other officers were present, if any. PO Iovine did not recall whether § 87(2)(b) was searched at the location, however, PO Howard recovered marijuana from some place on § 87(2)(b) at some point during this incident. § 87(2)(b) was not informed that a burglary had occurred in a nearby train station.

§ 87(2)(b) was brought to the 79<sup>th</sup> Precinct stationhouse. PO Iovine did not observe a strip search take place and he was not aware of whether a strip search had been authorized by a supervisor. PO Iovine did not recall which supervisor was present at the front desk.

**Subject Officer: SGT. DAVID LEONARDI**

- *Sgt. Leonardi was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) white man with brown hair and blue eyes.*
- *Sgt. Leonardi was scheduled to work from 1:18 p.m. to 10:15 p.m. as the supervisor of the 79<sup>th</sup> Precinct Strategic Enterprise Team (SET), including PO Ho, PO Cornejo, PO Iovine, and PO Howard, in plainclothes and assigned to a dark blue Crown Victoria (vehicle #§ 87(2)(b)).*

**Memo Book:**

“1750- 1 under by PO Cornejo 1755- I/O S/H” (encl. 8A-C)

**CCRB Statement:**

Sgt. Leonardi appeared at the CCRB on July 1, 2014 and provided the following statement (encl. 8D-E). His statement was mostly consistent with PO Howard’s, with the following additions and discrepancies outlined below.

Sgt. Leonardi did not recall where the marijuana was hidden on § 87(2)(b)’s person but recalled simply that the drugs that he bought were not in his hands at the time of the apprehension. Sgt. Leonardi did not recall a strip search being conducted for § 87(2)(b)’s arrest, though he stated that one occurred based on the arrest report. Sgt. Leonardi did not recall making any observations or being informed of any observations that led to a strip search. Sgt. Leonardi stated that in some cases, based on the arrest history of the individual, a strip search may be authorized, though he did not recall authorizing one in this case, or having any discussion with the Desk officer regarding the strip search. Sgt. Leonardi stated that the incident date was very old and although he recalled the independent investigation of § 87(2)(b) the investigation led to 14 different arrests of marijuana purchases, and Sgt. Leonardi had a difficult time recalling the specifics of this particular arrest. Sgt. Leonardi stated that it would have been his decision to strip search an individual since PO Howard, PO Iovine and the arresting officer, PO Cornejo, were part of the team that he was supervising.

**Subject Officer: PO EDUARDO CORNEJO**

- *PO Cornejo was § 87(2)(b) at the time of this incident. He is a § 87(2)(b) Hispanic man with black hair and brown eyes.*
- *PO Cornejo was scheduled to work from 2:00 p.m. to 10:35 p.m. as part of the Strategic Enterprise Team with PO Andrew Ho, and Sgt. Leonardi.*

**Criminal Complaint Report for § 87(2)(b) (Complaint #2014-079-00631)**

On the date of this incident, PO Cornejo completed a criminal complaint report for § 87(2)(b) for criminal sale of marijuana. Narrative: “§ 87(2)(b)”  
(encl. 9C-E).

**Arrest Report § 87(2)(b)**

§ 87(2)(a) 160.50

**Memo Book:**

17:50: 92C c/o Herkimer & Atlantic Deft: § 87(2)(b) DOB: § 87(2)(b) Assigned to be PO Howard (encl. 9A-B).

**CCRB Statement**

On September 10, 2014, PO Cornejo appeared at the CCRB and provided the following statement. (encl. 9I-J).

PO Cornejo was not involved in the apprehension of § 87(2)(b) during this incident. He was assigned the arrest that was made by PO Howard while inside the 79<sup>th</sup> Precinct stationhouse. PO Cornejo did not see § 87(2)(b) at all during this incident and was not informed of the circumstances of this arrest. PO Cornejo simply transcribed the information that was told to him by PO Howard to complete the arrest report. PO Cornejo did not partake in or witness a strip search, was not given any explanation as to why § 87(2)(b) was strip searched, and was not aware if any supervisor authorized the strip search.

**NYPD Documents****Command Log**

The Command Log entry for § 87(2)(b)'s arrest does not note that a strip search was conducted (encl. 12A).

**Property Invoice #§ 87(2)(b)**

PO Cornejo invoiced one ziplock bag of an unspecified amount of marijuana. PO Howard was listed as the finder (encl. 14A-B).

**Arrest Inquiry Search for § 87(2)(b)**

§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

**Other Evidence****Desk Appearance Ticket for Incident and Disposition**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)]  
[§ 87(2)(b)]

**Status of Civil Proceedings**

- On December 23, 2014, the New York City Comptroller's Office indicated that § 87(2)(b) has not filed a notice of claim in regards to this incident.

**Civilian Criminal History**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilian CCRB History**

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. 2G).

### **Subject Officer CCRB History**

- Sgt. David Leonardi has been a member of the service for 12 years and there are six substantiated CCRB allegations against him. In CCRB case #200410123 he received a command discipline for a substantiated allegation of property damage, in CCRB case #201107817 he received instructions for substantiated allegations of a frisk, search of person, and stop [§ 87(4-b) § 87(2)(g)]. In CCRB case #201310961 the CCRB substantiated allegations of frisk and refusal to process civilian complaint. [§ 87(4-b) § 87(2)(g)].
- PO Terrence Howard has been a member of the service for three years and there are two substantiated CCRB allegations against him. In CCRB case number 201304352, the CCRB substantiated an allegation for a frisk [§ 87(4-b) § 87(2)(g)]. In CCRB case number 201310961 the CCRB substantiated an allegation for frisk against PO Howard (encl. 2A).
- PO Iovine has been a member of the service for seven years. There are no substantiated CCRB allegations against him (encl. 2B).

### **Conclusion**

#### **Identification of Subject Officers**

Although PO Howard and PO Iovine did not recall strip searching [§ 87(2)(b)] they both admitted to apprehending [§ 87(2)(b)] [§ 87(2)(b)] stated that the officers that apprehended him were the same officers that strip searched him. Sgt. Leonardi stated that he was supervising PO Howard, PO Iovine, and the arresting officer, PO Cornejo. Sgt. Leonardi stated that any strip searches that were conducted of [§ 87(2)(b)] would be authorized by him. [§ 87(2)(g)]

### **Investigative Findings and Recommendations**

#### **Allegations Not Pleaded**

[§ 87(2)(g)]

#### **Allegation A- Abuse of Authority- Sgt. David Leonardi authorized the strip-search of**

[§ 87(2)(b)]

#### **Allegation B- Abuse of Authority- PO Terrence Howard strip-searched** [§ 87(2)(b)]

#### **Allegation C- Abuse of Authority- PO Michael Iovine strip-searched** [§ 87(2)(b)]

[§ 87(2)(g)] [§ 87(2)(b)] alleged that after arriving at the 79<sup>th</sup> Precinct stationhouse, he was strip searched by PO Howard and PO



Iovine in the cell area. PO Howard, PO Iovine and Sgt. Leonardi do not independently recall a strip search occurring during this incident. PO Howard, and Sgt. Leonardi stated that a strip search occurred based solely on § 87(2)(b)'s arrest documentation. § 87(2)(g)

§ 87(2)(b) PO Howard and PO Iovine were consistent that marijuana was found in § 87(2)(b)'s sock during his arrest. PO Howard also stated that there was a strong odor of marijuana emanating from § 87(2)(b) after marijuana was removed from § 87(2)(b). However, the odor of marijuana was only brought up approximately five months after his initial CCRB interview in which PO Howard stated that he had no recollection of a strip search, or factors contributing to a strip search in this particular incident. Additionally, the observation was not corroborated by PO Iovine, or Sgt. Leonardi. § 87(2)(g)

Before an arrestee may be lawfully subjected to a strip search, the Fourth Amendment requires an individualized “reasonable suspicion that an arrestee is concealing weapons or other contraband based on the crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest. To establish reasonable suspicion the officer must point to specific objective facts and rational inferences that they are entitled to draw from those facts in light of their experience. The standard requires individualized suspicion, specifically directed to the person who is targeted for the strip search. *United States v. Freedman* 691 F.3d 893 (7<sup>th</sup> Cir. 2012) (encl. 1A-F)

Patrol Guide Procedure 208-05 states that, “A strip search will not be conducted after a decision is made to void an arrest or to release the prisoner immediately upon the issuance of a summons” (encl. 1J).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED].

In addition, PO Howard stated that at the time of § 87(2)(b) [REDACTED]'s arrest, pending a search for outstanding warrants, he was aware that § 87(2)(b) [REDACTED] was going to be released with a desk appearance ticket, due to the small quantity of marijuana found on § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED].

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **Allegations A, B, and C** be closed as *substantiated*.

§ 87(4-b), § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

[REDACTED]  
[REDACTED]  
[REDACTED]

[REDACTED]  
[REDACTED]  
[REDACTED].

Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date